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Trinidad and Tobago

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The United Nations country team recommended that Trinidad and Tobago ratify all outstanding international human rights instruments, including the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, the International Convention for the Protection of All Persons from Enforced Disappearance, the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families, the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty, and the Optional Protocol to the Convention on the Rights of the Child on a communications procedure.[2] The United Nations Educational, Scientific and Cultural Organization (UNESCO) recommended ratifying the Convention against Discrimination in Education, the Global Convention on the Recognition of Qualifications concerning Higher Education, the Regional Convention on the Recognition of Studies, Diplomas and Degrees in Higher Education in Latin America and the Caribbean and the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights.[3]

3. The Human Rights Committee recommended reacceding to the Optional Protocol to the International Covenant on Civil and Political Rights and considering accession to the Second Optional Protocol to the Covenant, aiming at the abolition of the death penalty.[4]

4. The United Nations country team noted that the periodic report of Trinidad and Tobago to the Committee on Economic, Social and Cultural Rights had been overdue since 2007. It recommended that Trinidad and Tobago prioritize the submission of all overdue reports to the treaty bodies.[5] UNESCO encouraged Trinidad and Tobago to submit its overdue reports, especially its national report on the implementation of the Recommendation

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on Science and Scientific Researchers for the second consultation period (2021–2025), and to submit comprehensive national reports regularly.[6]

5. The United Nations country team noted that Trinidad and Tobago had not extended a standing invitation to the special procedure mandate holders and had not hosted a country visit. It recommended issuing an invitation to the special procedures.[7]

III. National human rights framework

1. Constitutional and legislative framework

6. The Human Rights Committee noted that gaps remained between the domestic legal framework and the International Covenant on Civil and Political Rights, that reservations to key provisions of the Covenant remained in force and that no examples had been provided of reference to the Covenant in court decisions. It recommended that Trinidad and Tobago ensure that all the Covenant rights were fully applicable in domestic law, judicial training was provided on the Covenant, constitutional restrictions were reviewed and consideration given to withdrawing its reservations to the Covenant.[8]

2. Institutional infrastructure and policy measures

7. The same Committee noted that the Office of the Ombudsman and the Equal Opportunity Commission were not fully compliant with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles) and there was a lack of clarity and progress on plans to convert the Commission into a national human rights institution.[9] The United Nations country team and the Committee on the Elimination of Discrimination against Women echoed those concerns.[10] The Human Rights Committee and the United Nations country team recommended establishing a national human rights institution that had a broad mandate, appropriate powers, financial independence and a transparent appointment process and was fully compliant with the Paris Principles.[11] The United Nations country team also recommended seeking technical assistance from the Office of the United Nations High Commissioner for Human Rights (OHCHR) to support the institution's establishment and operationalization.[12]

8. The Committee on the Rights of Persons with Disabilities requested information on measures taken to establish an independent mechanism to monitor the implementation of the Convention on the Rights of Persons with Disabilities, with sufficient budgetary allocations and taking into account the Paris Principles.[13] The Committee on the Elimination of Racial Discrimination asked about the mandates, independence and resources of the Equal Opportunity Commission, the Equal Opportunity Tribunal and the Office of the Ombudsman, including their capacity to receive and examine complaints of racial discrimination, provide assistance to victims and act on their own initiative. It requested information on the establishment of a national human rights institution in accordance with the Paris Principles.[14]

9. The Human Rights Committee welcomed the steps taken to prevent and combat corruption among persons exercising public functions, while remaining concerned about shortcomings in enforcement, low reporting compliance, insufficient inter-institutional cooperation and delays in adopting the whistle-blower protection bill. It recommended intensifying anti-corruption efforts by ensuring independent investigations, improving oversight bodies, protecting whistle-blowers through enactment of the bill and expanding targeted training and public awareness initiatives.[15]

10. The United Nations country team noted that, although capacity-building initiatives for law enforcement and public officials had been implemented through United Nations technical assistance, human rights training remained project-dependent and was not systematically institutionalized, and public awareness-raising remained limited. It recommended that Trinidad and Tobago continue and expand human rights training for all public officers, institutionalize human rights education within pre-service and in-service training for public officials, and develop a systematic national programme for public awareness-raising on human rights, with particular focus on marginalized groups.[16]

11. The Human Rights Committee expressed concern that Trinidad and Tobago maintained a reservation allowing derogation from non-derogable Covenant rights during states of emergency and highlighted the application of the Anti-Gang Act during the 2011 state of emergency, which had permitted prolonged detention without bail, raising due process concerns. It also noted insufficient safeguards to protect due process rights during emergencies. It recommended aligning the national legal framework with the International Covenant on Civil and Political Rights and ensuring that any measures introduced to protect the population in a state of emergency were strictly proportional to the exigencies of the situation, limited in duration, geographical coverage and material scope, and subject to judicial review.[17]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

12. The Committee on the Elimination of Racial Discrimination asked about potential gaps in domestic law with regard to the provisions of the International Convention on the Elimination of All Forms of Racial Discrimination, including the definition of racial discrimination and measures to ensure the adequate advancement of individuals and groups protected under the Convention. It also requested information about discrimination in law enforcement, including racial profiling, discrimination against non-citizens in detention, and respect for the principle of non-refoulement.[18]

13. The United Nations country team highlighted persistent gaps in legislative protection against discrimination and the absence of refugee legislation. It recommended: (a) adopting comprehensive anti-discrimination legislation; (b) enacting refugee legislation aligned with the Convention relating to the Status of Refugees, including guarantees of no detention for children and families, access to education and no penalization for irregular entry for asylum-seekers; and (c) adopting an updated national refugee policy that included responsibility for registration and refugee status determination.[19]

14. The Human Rights Committee remained concerned that the existing legal framework did not afford full and effective protection against direct, indirect and intersectional discrimination in the public and private sectors and on all the grounds prohibited under the International Covenant on Civil and Political Rights. It highlighted discriminatory provisions in immigration law and persistent discrimination against affected groups in education, health and employment. It recommended adopting comprehensive anti-discrimination legislation covering all prohibited grounds, including sexual orientation, gender identity and HIV status, decriminalizing same-sex relations, amending discriminatory immigration provisions, combating stigma and ensuring investigations and remedies in cases of abuse.[20]

2. Right to life, liberty and security of person, and freedom from torture

15. The same Committee expressed grave concern that the courts continued to impose death sentences and that the death penalty remained mandatory for murder, leading to a large number of persons on death row. It regretted that the State did not plan to consider abolishing the death penalty or even establishing an official moratorium until violent crime was under control. It recommended taking all measures necessary, including legislative action, to ensure that the death penalty was applied only for the most serious crimes involving intentional killing and was never mandatory, and pursuing an irrevocable path towards its complete eradication, de facto and de jure, commuting all pending death sentences to sentences of imprisonment, fostering public dialogue on abolition and establishing a de jure moratorium.[21] The United Nations country team expressed concern about the mandatory death penalty for murder and recommended making efforts to abolish the death penalty.[22]

16. The Human Rights Committee expressed concern about high rates of homicide, the increase in gang-related violence and the fact that the anti-gang legislative framework had reportedly led to mass arrests and escalating violence. It recommended reviewing the anti-gang legislation to ensure its full compliance with the International Covenant on Civil and Political Rights, increasing preventive and rehabilitative measures, especially for young people, and ensuring effective investigations into violent crimes.[23]

17. The United Nations country team noted that there continued to be high levels of violent crime in Trinidad and Tobago. Concerns had been raised about the potential impact on fundamental rights of the authorities' declaration of states of emergency and expanded law enforcement powers, with allegations of excessive use of force by security forces, including warrantless arrests.[24] The Human Rights Committee expressed concern about increased reports of summary executions and the use of lethal force by the police and significant delays in investigations into serious police misconduct, which had yielded limited results. It recommended aligning laws and practices on the use of force with United Nations standards, improving operational planning to minimize the risks to human life, ensuring prompt and impartial investigations into reports of excessive use of force by law enforcement officers, providing victims with redress and compensation, strengthening the capacity and powers of oversight bodies and ensuring that all law enforcement officers systematically received training on the use of force based on United Nations standards.[25] The United Nations country team recommended developing and implementing a national violence prevention strategy grounded in a public health and human rights-based approach and continuing to implement the prevention addendum to the Roadmap for Implementing the Caribbean Priority Actions on the Illicit Proliferation of Firearms and Ammunition across the Caribbean in a Sustainable Manner by 2030.[26]

18. The Human Rights Committee expressed concern that, despite ongoing reforms, detention conditions remained inadequate, there were high numbers of pretrial detainees, and remand prisoners were often deprived of their liberty for prolonged periods. It recommended that Trinidad and Tobago guarantee that anyone who was arrested or detained enjoyed, from the outset of the deprivation of liberty, all fundamental legal safeguards and that the detention was in full conformity with the United Nations Standard Minimum Rules for the Treatment of Prisoners, reduce overcrowding by improving judicial efficiency and using non-custodial measures, limit pretrial detention and ensure independent monitoring of all places of detention.[27] The United Nations country team reported that the 2026 Parole Bill sought to introduce an early release system with structured supervision to promote rehabilitation and reintegration. It recommended ensuring that all persons in detention had access to adequate medical care, sanitation, ventilation and legal assistance.[28]

3. Human rights and counter-terrorism

19. The Human Rights Committee expressed concern that the broad definitions of "terrorism" and "terrorist activities" in the State's counter-terrorism legislation had led to the misclassification of non-combatants as foreign terrorist fighters and that several of its nationals continued to be detained as suspected members of Da'esh in harsh conditions in a third country. The Committee recommended that it ensure that its counter-terrorism legislation complied with the principles of legality, certainty, predictability and proportionality, particularly with regard to definitions, that persons suspected of or charged with terrorist acts were provided with all legal safeguards, and that it swiftly repatriate all its nationals, including children, from armed conflict zones and give them access to rehabilitation services.[29]

4. Administration of justice, including impunity, and the rule of law

20. The United Nations country team noted that systemic delays in the justice system continued to undermine access to justice, contributed to prolonged pretrial detention and eroded public confidence. Legal aid resources remained insufficient and reintegration barriers affected former detainees. It recommended undertaking substantive judicial reforms, strengthening constitutional guarantees of trial within a reasonable time and adopting targeted reintegration and anti-discrimination measures to reduce recidivism.[30] The Human Rights Committee shared those concerns and recommended reducing trial delays and

backlogs, ensuring the full independence and impartiality of the judiciary, ensuring the timely provision of legal aid, preventing corruption within the judiciary and ensuring that procedures for the selection, appointment, suspension, transfer, removal and disciplining of judges and prosecutors complied with the International Covenant on Civil and Political Rights.[31]

21. The United Nations country team noted that the effectiveness of the Police Complaints Authority was undermined by limited powers and resources, the lack of direct prosecutorial authority, limited staffing and forensic capacity and insufficient access to timely police evidence, despite its mandate to provide civilian oversight. An estimated 55 police killings had occurred in 2025, underscoring the urgency of strengthening independent oversight mechanisms. The country team recommended amending the Police Complaints Authority Act to grant the Authority full investigative and prosecutorial powers, mandating transparent public reporting by the Authority, introducing mandatory use of body cameras for frontline police officers and strengthening firearms and armoury management systems.[32]

22. The Human Rights Committee was deeply concerned about the very low age of criminal responsibility (7 years) and that some children were detained together with adults. It recommended significantly raising the age of criminal responsibility, expanding the use of non-custodial alternatives, ensuring that deprivation of liberty of children was used only as a measure of last resort and ensuring that juveniles were fully separated from adults in all detention facilities.[33]

5. Fundamental freedoms and the right to participate in public and political life

23. The same Committee expressed concern about the criminalization of defamatory libel, which could hamper the activities of journalists and human rights defenders and restrict their freedom of expression. It recommended ensuring that, in law and in practice, everyone could freely exercise the right to freedom of expression, decriminalizing defamatory libel and ensuring that imprisonment was never a punishment for such acts and that the Libel and Defamation Act was not improperly used to curb freedom of expression.[34] The United Nations country team expressed similar concerns, noting that the criminalization of defamation was inconsistent with international standards on freedom of expression.[35] UNESCO also echoed those concerns, adding concern about the exemptions in the Freedom of Information Act. It recommended decriminalizing defamation and placing it within civil defamation legislation that was in accordance with international standards, establishing an independent institution to monitor implementation of the Freedom of Information Act and ensuring transparency and accountability in the governance of digital platforms.[36]

24. The Human Rights Committee was concerned that the legal requirement to provide notification of peaceful assemblies might amount to de facto prior authorization and that police powers allowed for arbitrary interference in assemblies. It recommended reviewing and amending national law and practices to ensure that individuals fully enjoyed their right of peaceful assembly and guaranteeing that any restrictions of that right complied with the requirement that any obligation to provide notification not be misused to stifle peaceful assemblies.[37]

25. The Committee of Experts on the Application of Conventions and Recommendations of the International Labour Organization (ILO) noted prolonged delays in amending the Trade Unions Act and Industrial Relations Act to bring them into conformity with the ILO Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87). Those Acts continued to impose undue restrictions on trade union registration and internal administration and the right to strike. It strongly urged the Government to immediately amend the Acts to bring them into conformity with that Convention.[38] The United Nations country team noted the limited progress made since draft policy papers had been submitted to Cabinet in 2021. It recommended expeditiously amending the Trade Unions Act, the Industrial Relations Act and the Civil Service Act, in consultation with the social partners.[39]

6. Prohibition of all forms of slavery, including trafficking in persons

26. The Human Rights Committee expressed concern about the identification of victims of trafficking in persons, the low number of investigations and convictions, and reports of official complicity in trafficking in persons offences and the sexual exploitation of women.

It recommended strengthening efforts to combat, prevent, eradicate and punish trafficking in persons by improving victim identification, effectively prosecuting and sanctioning perpetrators, particularly complicit officials, ensuring reparations for victims, and enhancing training and prevention efforts with adequate resources.[40] The ILO Committee of Experts expressed similar concerns and urged the Government to strengthen law enforcement capacity to identify cases of trafficking, including trafficking in children, undertake investigations and ensure that sufficiently effective and dissuasive penalties were imposed in practice, including against complicit law enforcement officers.[41]

27. The United Nations country team noted that, despite the existence of a legislative and institutional framework to combat trafficking in persons, enforcement outcomes remained inadequate, as did victim identification and protection, particularly in the absence of national legislation on asylum. It recommended strengthening enforcement of anti-trafficking legislation, expanding and adequately resourcing victim protection services, enacting refugee legislation, and building the capacity of law enforcement and immigration officials to identify and support victims of trafficking in persons.[42]

7. Right to work and to just and favourable conditions of work

28. The ILO Committee of Experts had highlighted the exclusion of several categories of workers from the Industrial Relations Act and the 50% representativeness threshold, which undermined effective collective bargaining. It hoped that the amendment of the Act would be completed in the near future to extend coverage to all workers and to allow minority unions to bargain at least for their members when no majority union existed.[43]

29. The same Committee, noting the persistent occupational segregation and substantive gender pay gap, urged the Government to take measures to reduce pay disparities and to enshrine in law equal pay for work of equal value, notably through swift adoption of the Employment Standards Bill, alongside effective enforcement and monitoring.[44]

8. Right to social security

30. The United Nations country team noted that, while social protection programmes provided for financial, food and housing support, they remained inadequate owing to socioeconomic pressures and outdated poverty data, which undermined targeting. It also noted that eligibility rules for the Disability Assistance Grant discouraged employment, contrary to the principles of the Convention on the Rights of Persons with Disabilities. It recommended strengthening the collection, analysis and use of disaggregated data, integrating population dynamics into planning, and revising the rules on eligibility to the Disability Assistance Grant to include graduated income thresholds that supported self-sufficiency.[45]

9. Right to an adequate standard of living

31. The United Nations country team noted that, despite a relatively high per capita income, low unemployment and a comprehensive social protection system, poverty remained multidimensional and uneven, affecting 41.6% of children, with core deprivations including safe housing, sanitation, early learning and nutrition. It recommended developing a new multidimensional poverty index, establishing a unified social registry with disaggregated reporting, strengthening the collection, analysis and use of disaggregated data, including by migratory status, and integrating population dynamics, including youth, ageing and migration trends, into national development and sectoral planning.[46]

10. Right to health

32. The United Nations country team noted that, despite the fact that sexual and reproductive health and rights services were integrated into universal health coverage, pursuant to the National Sexual and Reproductive Health Policy, implementation gaps persisted. It recommended institutionalizing the Minimum Initial Service Package for Sexual and Reproductive Health in Emergencies, strengthening equitable access to integrated sexual and reproductive health and rights services by scaling up implementation of the programme of action for sexual, reproductive, maternal, neonatal, adolescent and child health with

dedicated financing, service integration and accountability mechanisms, and removing legal, policy and administrative barriers that limited adolescents' and migrants' access to those services.[47]

11. Right to education

33. UNESCO noted that, while the Constitution did not explicitly guarantee the right to education, the Education Act provided for non-discrimination in education and guaranteed free, compulsory schooling. UNESCO highlighted that education expenditure was below international benchmarks and that challenges in equitable access persisted, despite the recommendations received during the previous review cycle. UNESCO encouraged Trinidad and Tobago to bring public investment in education into line with international benchmarks, improve data reporting to the UNESCO Institute for Statistics, enshrine the right to education in the Constitution and legislation, introduce legislation making pre-primary education compulsory for at least one year and continue efforts to advance inclusive education, particularly for girls and children with disabilities.[48]

34. The United Nations country team noted that, while access to education was almost universal, retention challenges persisted, with adolescent girls affected by early pregnancy and gender-based violence and higher dropout rates among boys. It recommended expanding access to comprehensive sexuality education and sexual and reproductive health and rights services, linking education and health by implementing the programme of action for sexual, reproductive, maternal, neonatal, adolescent and child health, addressing the issues affecting boys' retention in schools, including mental health support, advancing refugee legislation to ensure access to education for all asylum-seeking and refugee children, increasing targeted investment, and integrating digital, artificial intelligence and future-ready skills into national curricula and workforce development strategies.[49]

12. Cultural rights

35. UNESCO observed that the right to benefit from scientific progress was not explicitly recognized in the Constitution or adequately reflected in national reporting, and that Trinidad and Tobago had not fulfilled its reporting obligations under the Recommendation on Science and Scientific Researchers. It encouraged the State to integrate that right into domestic legal and policy frameworks, safeguard scientific freedom and inclusive access to scientific education, address structural inequalities in access to scientific education and careers, and increase references to science-related rights in future reports under the universal periodic review.[50]

36. UNESCO encouraged Trinidad and Tobago to facilitate the participation of communities, civil society and vulnerable groups, including minorities, migrants, youth, persons with disabilities and Indigenous Peoples, in cultural heritage and creative expressions and to address gender disparities by ensuring that women and girls had equal opportunities to access and participate in cultural life.[51]

13. The environment

37. The United Nations country team recognized progress in climate governance, including the adoption of the National Climate Change Policy, the submission of the second nationally determined contribution and strengthened disaster preparedness. However, it noted persistent vulnerabilities, particularly in coastal areas, and the limited participation of marginalized groups. It recommended operationalizing comprehensive legislative frameworks for climate adaptation and disaster risk reduction, ensuring the meaningful participation of women, children, persons with disabilities and local communities, integrating human rights principles, including participation, accountability and non-discrimination, into all climate policies and adaption plans, and continuing regional and international cooperation, particularly with other small island developing States.[52]

B. Rights of specific persons or groups

1. Women

38. The Committee on the Elimination of Discrimination against Women requested information about legal and institutional gaps affecting women's rights, including the limited incorporation and visibility of the Convention on the Elimination of All Forms of Discrimination against Women in domestic law, shortcomings in the definition of discrimination against women, delays in adopting comprehensive gender equality frameworks and action plans, and barriers to women's access to justice. It also highlighted persistent violence and exploitation, including entrenched gender stereotypes, high levels of gender-based violence, trafficking and exploitation of prostitution and continuing substantive inequalities in political, economic and social life, including women's underrepresentation in political and public life, discrimination in employment and economic participation, barriers to education and health services, and the disproportionate impact of poverty, crises, climate change and disasters on rural and other disadvantaged women.[53] The ILO Committee of Experts had noted ongoing sex-based discrimination in the public service. It urged the Government to take the necessary steps to ensure the use of gender-neutral terminology in job titles and classifications across all sectors and, in the meantime, to take measures to promote the importance of gender-neutral language to help prevent discrimination and stereotyping, eliminate gender bias and advance equality between men and women in employment and occupation.[54]

39. The United Nations country team noted measures to address violence against women and gender-based violence, including specialized mechanisms within the police service and the launch of the Central Registry on Gender-based Violence (Umbono System). However, persistent challenges included underreporting, resource constraints and the need to expand specialized services and victim protection mechanisms. It recommended ensuring the full enforcement of the Domestic Violence Act through standardized protocols, mandatory refresher training and adequate resources, increasing prevention mechanisms, promptly adopting the Sexual Harassment Bill (2022) and continuing implementation of the National Action Plan on Women, Peace and Security (2025–2030).[55]

40. The United Nations country team noted policy progress on gender-based and sexual violence, including the adoption of the 2023–2027 national strategic action plan and clinical guidelines on intimate partner violence and sexual violence. However, persistent gaps remained in enforcement, survivor protection, access to justice, sustainable financing and integrated services, especially for migrants, adolescents and underserved groups. It recommended scaling up essential services, strengthening coordinated systems, improving case management, expanding prevention programmes targeting men and boys, and aligning responses with survivor-centred standards.[56]

41. The United Nations country team noted that, despite progress in women's empowerment and the existence of gender equality frameworks, persistent structural inequalities remained and reforms of discriminatory legislation had been delayed. It recommended adopting and enforcing measures to eliminate the gender pay gap, taking temporary special measures to increase women's political participation, addressing intersecting discrimination affecting rural women, single mothers, migrant women and women with disabilities, and expeditiously amending legislation containing provisions that discriminated against women.[57]

42. The Human Rights Committee welcomed the measures to increase the representation of women in political life. However, it remained concerned about the underrepresentation of women in decision-making positions and the persistence of patriarchal stereotypes and gender-based discrimination against women. It recommended ensuring women's full and equal participation in political and public life, particularly in decision-making positions, raising public awareness of the need to eliminate gender stereotypes and encouraging media outlets to promote positive images of women as active participants in public and political life.[58]

43. The same Committee regretted that, in cases of domestic violence, emergency protection orders reportedly could not be granted to persons of the same sex as the perpetrator

and that femicide was not expressly defined in national law. It recommended continuing the State's efforts to prevent, combat and eradicate violence against women and girls, in particular by criminalizing all forms of violence against women, including femicide, intensifying efforts to prosecute and secure convictions of perpetrators, expanding training of relevant public officials, ensuring that all women and girls had access to reporting mechanisms and that all victims had access to appropriate protection and reparations, including in cases of domestic violence against a same-sex partner, and strengthening awareness-raising campaigns to address social and cultural patterns and stereotypes that facilitated tolerance of gender-based violence.[59]

44. The same Committee was concerned that abortion continued to be criminalized, except when there was a direct threat to the woman's life, and that the State had no intention of modifying its legislation until abortion was widely accepted by society. It recommended amending national legislation, policies and guidelines to guarantee safe and legal access to abortion where the life or health of the pregnant woman or girl was at risk or where carrying a pregnancy to term would cause her substantial pain or suffering, most notably where the pregnancy was the result of rape or incest or the pregnancy was not viable, ensuring that criminal penalties were not applied to those who had recourse to abortion or providers thereof, strengthening sexual and reproductive health education and ensuring access to contraception without stigma.[60]

2. Children

45. The same Committee, while noting efforts to abolish child marriage, raise the minimum marriage age to 18 and prohibit the corporal punishment of children in schools, remained concerned that corporal punishment of children by their parents was considered reasonable and about the reported persistent abuse of children in their own homes and in institutions. It recommended that Trinidad and Tobago protect minors against all forms of abuse, enact legislation explicitly prohibiting the corporal punishment of children in all settings, encourage non-violent forms of discipline and conduct awareness-raising campaigns about the harmful effects of corporal punishment.[61]

46. The ILO Committee of Experts, noting ongoing efforts since 2004, urged the Government to take all the necessary measures to ensure the adoption in the very near future of the list of hazardous types of work prohibited to children under 18 years of age.[62]

3. Persons with disabilities

47. The Committee on the Rights of Persons with Disabilities asked about the apparent absence of comprehensive disability legislation and about legal provisions that might contradict the provisions of the Convention on the Rights of Persons with Disabilities. It also asked about institutionalization, forced treatment, violence, detention and barriers to justice for persons with disabilities.[63]

48. The United Nations country team noted that a persons with disabilities bill and a comprehensive national strategy were under development. It recommended prioritizing their adoption, developing and enforcing accessibility standards, including for transport, implementing inclusive education policies and programmes for students with disabilities, developing targeted strategies to increase employment opportunities for persons with disabilities, ensuring that persons with disabilities were fully counted in national data, and continuing and expanding public awareness campaigns to promote inclusivity.[64]

4. Lesbian, gay, bisexual, transgender and intersex persons

49. The United Nations country team highlighted the absence of explicit constitutional and legislative protections against discrimination on all internationally recognized grounds, including sexual orientation and gender identity, heightened concerns following the recriminalization of consensual same-sex relations in March 2025, and persistent support by segments of the population for the exclusion of certain marginalized groups. It suggested implementing sustained social and behavioural interventions to strengthen inclusion and prevent social fragmentation and recommended adopting comprehensive anti-discrimination legislation explicitly prohibiting discrimination on all grounds.[65]

50. The ILO Committee of Experts expressed concern about the absence of explicit legal protection against employment discrimination based on sexual orientation. It noted that the proposed inclusion of sexual orientation as a protected ground in the Equal Opportunity Act had remained pending for over a decade.[66]

5. Migrants, refugees and asylum-seekers

51. The United Nations country team noted progress on the regularization of and school access for migrants, refugees and asylum-seekers following an updated refugee policy, and the ongoing 2026 Migration Registration Framework. It recommended adopting national refugee legislation aligned with the Convention relating to the Status of Refugees and ensuring that children and families were not detained, that irregular entry was not penalized and that all asylum-seeking and refugee children had non-discriminatory access to education.[67]

52. In July 2023, United Nations experts warned that the High Court ruling declaring the Convention relating to the Status of Refugees inapplicable in Trinidad and Tobago could have grave implications for migrants and people seeking international protection. They expressed concern that the decision permitted the deportation of individuals, including refugees recognized by the Office of the United Nations High Commissioner for Refugees, and cited the apprehension of 196 Venezuelan migrants. The experts stated that a proactive legislative response was urgently required to incorporate the Convention into domestic law, emphasizing that the right to life and the principle of non-refoulement were grounded in customary international law and were therefore binding on every State, as well as under many international treaties to which Trinidad and Tobago was a Party. They had previously raised concerns with Trinidad and Tobago about allegations of pushbacks at sea, forced returns and lack of due process. The experts reiterated that all migrants were protected by international human rights law, without discrimination, and indicated their readiness to engage with the Government to support efforts to comply with the country's obligations.[68]

53. The Human Rights Committee was concerned about the absence of a comprehensive legislative and institutional framework for the protection of refugees and asylum-seekers and regretted that the Convention relating to the Status of Refugees had not been incorporated into domestic law. It expressed concern about increasing numbers of deportations of individuals seeking international protection and harmful detention practices affecting adults and children. It recommended adopting legislation to protect the rights of refugees and asylum-seekers, identifying those in need of international protection, strictly adhering to the principle of non-refoulement and refraining from criminalizing irregular entry, ensuring that any detention of migrants and asylum-seekers, especially children, was lawful, necessary, reasonable and proportionate, and ensuring investigations into cases of discrimination or violence and redress for victims.[69]

6. Stateless persons

54. The same Committee regretted that Trinidad and Tobago had not yet incorporated the Convention relating to the Status of Stateless Persons, to which it was a Party, into domestic law. It recommended that Trinidad and Tobago adopt comprehensive statelessness legislation.[70]

Notes

1 See A/HRC/49/16 and A/HRC/49/2.
2 United Nations country team submission for the universal periodic review of Trinidad and Tobago, paras. 2 and 4.
3 UNESCO submission for the universal periodic review of Trinidad and Tobago, paras. 19 (i) and (ii) and 25 (vi).
4 CCPR/C/TTO/CO/5, paras. 7, 8, 29 and 30.
5 United Nations country team submission, paras. 5 and 7 (a).
6 UNESCO submission, paras. 18, 19 (ix) and (x) and 25 (i).
7 United Nations country team submission, paras. 6 and 7 (b).
8 CCPR/C/TTO/CO/5, paras. 5 and 6.

[9] Ibid., para. 9.
[10] United Nations country team submission, para. 12; and CEDAW/C/TTO/QPR/8, paras. 6 and 7.
[11] CCPR/C/TTO/CO/5, para. 10; and United Nations country team submission, para. 13 (a).
[12] United Nations country team submission, para. 13 (b).
[13] CRPD/C/TTO/Q/1, para. 39 (a).
[14] CERD/C/TTO/QPR/15-16, para. 8.
[15] CCPR/C/TTO/CO/5, paras. 11 and 12.
[16] United Nations country team submission, paras. 71 and 72.
[17] CCPR/C/TTO/CO/5, paras. 13 and 14.
[18] CERD/C/TTO/QPR/15-16.
[19] United Nations country team submission, paras. 8, 9 and 11.
[20] CCPR/C/TTO/CO/5, paras. 17 and 18.
[21] CCPR/C/TTO/CO/5, paras. 29 and 30.
[22] United Nations country team submission, paras. 97–99.
[23] CCPR/C/TTO/CO/5, paras. 27 and 28.
[24] United Nations country team submission, para. 24.
[25] CCPR/C/TTO/CO/5, paras. 25 and 26.
[26] United Nations country team submission, para. 28.
[27] CCPR/C/TTO/CO/5, paras. 31 and 32.
[28] United Nations country team submission, paras. 41 and 42.
[29] CCPR/C/TTO/CO/5, paras. 15 and 16.
[30] United Nations country team submission, paras. 34–38.
[31] CCPR/C/TTO/CO/5, paras. 37 and 38.
[32] United Nations country team submission, paras. 29–33.
[33] CCPR/C/TTO/CO/5, paras. 39 and 40.
[34] Ibid., paras. 41 and 42.
[35] United Nations country team submission, paras. 43–47.
[36] UNESCO submission, paras. 9–12, 15, 20 and 21.
[37] CCPR/C/TTO/CO/5, paras. 43 and 44.
[38] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4309548,103138:NO.
[39] United Nations country team submission, paras. 57 and 58.
[40] CCPR/C/TTO/CO/5, paras. 33 and 34.
[41] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13101:0::NO:13101:P13101_COMMENT_ID:4399828; and https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO:13100:P13100COMMENT_ID,P13100_COUNTRY_ID:4396476,103138:NO.
[42] United Nations country team submission, paras. 48–51.
[43] See https://normlex.ilo.org/dyn/normlx_en/f?p=NORMLEXPUB:13101:0::NO::P13101_COMMENT_ID:3301085.
[44] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4458929,103138; and https://www.ilo.org/normlex-permalink/comment/en/4458933.
[45] United Nations country team submission, paras. 59 and 60.
[46] Ibid., paras. 52–56.
[47] Ibid., paras. 61–65.
[48] UNESCO submission, paras. 2–8 and 19 (iii)–(viii).
[49] United Nations country team submission, paras. 66–70.
[50] UNESCO submission, paras. 16–18 and 25.
[51] Ibid., para. 23.
[52] United Nations country team submission, paras. 19–23.
[53] CEDAW/C/TTO/QPR/8, paras. 1–3, 5, 8–14 and 16–24.
[54] See https://www.ilo.org/normlex-permalink/comment/en/4458933.
[55] United Nations country team submission, paras. 73–79.
[56] Ibid., paras. 80–84.
[57] Ibid., paras. 85–90. See also https://www.ilo.org/normlex-permalink/comment/en/4458933.
[58] CCPR/C/TTO/CO/5, paras. 19 and 20.
[59] Ibid., paras. 21 and 22.
[60] Ibid., paras. 23 and 24.

[61] Ibid., paras. 45 and 46.
[62] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4396476,103138:NO.
[63] CRPD/C/TTO/Q/1.
[64] United Nations country team submission, paras. 93 and 94.
[65] Ibid., paras. 14–18.
[66] See https://www.ilo.org/normlex-permalink/comment/en/4458933. See also United Nations country team submission, para. 16.
[67] United Nations country team submission, paras. 95 and 96.
[68] See https://www.ohchr.org/en/press-releases/2023/07/trinidad-and-tobago-court-ruling-deportations-will-gravely-impact-refugees.
[69] CCPR/C/TTO/CO/5, paras. 35 and 36.
[70] Ibid.